

**बिड दस्तावेज़ / Bid Document**

| बिड विवरण/Bid Details                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                       |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| बिड बंद होने की तारीख/समय /Bid End Date/Time                                                                                                                                                                              | 14-07-2026 17:00:00                                                                                                                                                                                                                                                                                                   |
| बिड खुलने की तारीख/समय /Bid Opening Date/Time                                                                                                                                                                             | 14-07-2026 17:30:00                                                                                                                                                                                                                                                                                                   |
| बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)                                                                                                                                                 | 180 (Days)                                                                                                                                                                                                                                                                                                            |
| मंत्रालय/राज्य का नाम/Ministry/State Name                                                                                                                                                                                 | Gujarat                                                                                                                                                                                                                                                                                                               |
| विभाग का नाम/Department Name                                                                                                                                                                                              | Education Department Gujarat                                                                                                                                                                                                                                                                                          |
| संगठन का नाम/Organisation Name                                                                                                                                                                                            | Directorate Of Technical Education                                                                                                                                                                                                                                                                                    |
| कार्यालय का नाम/Office Name                                                                                                                                                                                               | Government Polytechnic Rajkot                                                                                                                                                                                                                                                                                         |
| शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal                                                                                                                                                     | HOD Email id :do-64478-raj@gujarat.gov.in<br>Buyer Email id: gpajkot.chemical@gmail.com                                                                                                                                                                                                                               |
| कुल मात्रा/Total Quantity                                                                                                                                                                                                 | 1                                                                                                                                                                                                                                                                                                                     |
| वस्तु श्रेणी /Item Category                                                                                                                                                                                               | COD (Chemical Oxygen Demand) Analyzer (Closed Reflux) (Q3)                                                                                                                                                                                                                                                            |
| उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service                                                                                                            | 3 Year (s)                                                                                                                                                                                                                                                                                                            |
| वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover                                                                                                              | Yes   Complete                                                                                                                                                                                                                                                                                                        |
| स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover                                                                                              | Yes   Complete                                                                                                                                                                                                                                                                                                        |
| विक्रेता से मांगे गए दस्तावेज़/Document required from seller                                                                                                                                                              | Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC)<br>*In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer |
| क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid? | Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)                                                                                                                                                |

| बिड विवरण/Bid Details                                                                                                                                                                        |                                                 |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------|
| बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / <b>Minimum number of bids required to disable automatic bid extension</b>                                             | 3                                               |
| दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / <b>Number of days for which Bid would be auto-extended</b>                                                                   | 7                                               |
| ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / <b>Number of Auto Extension count</b>                                                                                                         | 1                                               |
| विगत प्रदर्शन / <b>Past Performance</b>                                                                                                                                                      | 10 %                                            |
| बिड से रिवर्स नीलामी सक्रिय किया/ <b>Bid to RA enabled</b>                                                                                                                                   | Yes                                             |
| रिवर्स नीलामी योग्यता नियम/ <b>RA Qualification Rule</b>                                                                                                                                     | 50% Lowest Priced Technically Qualified Bidders |
| बिड का प्रकार/ <b>Type of Bid</b>                                                                                                                                                            | Two Packet Bid                                  |
| तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय / <b>Time allowed for Technical Clarifications during technical evaluation</b>                                                    | 2 Days                                          |
| निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/ <b>Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)</b> | No                                              |
| अनुमानित बिड मूल्य / <b>Estimated Bid Value</b>                                                                                                                                              | 80000                                           |
| मूल्यांकन पद्धति/ <b>Evaluation Method</b>                                                                                                                                                   | Total value wise evaluation                     |
| मध्यस्थता खंड/ <b>Arbitration Clause</b>                                                                                                                                                     | No                                              |
| सुलह खंड/ <b>Mediation Clause</b>                                                                                                                                                            | No                                              |

#### ईएमडी विवरण/EMD Detail

|                   |    |
|-------------------|----|
| आवश्यकता/Required | No |
|-------------------|----|

#### ईपीबीजी विवरण /ePBG Detail

|                   |    |
|-------------------|----|
| आवश्यकता/Required | No |
|-------------------|----|

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

#### एमआईआई खरीद वरीयता / MII Purchase Preference

|                                              |     |
|----------------------------------------------|-----|
| एमआईआई खरीद वरीयता / MII Purchase Preference | Yes |
|----------------------------------------------|-----|

|                                                                                                                                                                |    |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------|----|
| मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% तक की सीमा में है / Purchase Preference to MII sellers available upto price within L1+X% | 20 |
| मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference                      | 50 |

#### एमएसई खरीद वरीयता/MSE Purchase Preference

|                                                                                                                                                                                                           |     |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|
| एमएसई खरीद वरीयता/MSE Purchase Preference                                                                                                                                                                 | Yes |
| सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% / Purchase Preference to MSE OEMs/ Service Provider available upto price within L1+X%                 | 15  |
| सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference | 15  |

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
5. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.
6. Preference to Make In India products (For bids < 200 Crore):Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public

Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.

[OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

7. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 15% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

8. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

9. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 10% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

10. Reverse Auction would be conducted amongst first 50% of the technically qualified bidders arranged in the order of prices from lowest to highest. Number of sellers eligible for participating in RA would be rounded off to next higher integer value if number of technically qualified bidders is odd (e.g. if 7 bids are technically qualified, then RA will be conducted amongst L-1 to L-4). In case number of technically qualified bidders are 2 or 3, RA will be between all without any elimination. If Buyer has chosen to split the bid amongst N sellers, then minimum N sellers would be taken to RA round. In case Primary products of only one OEM are left in contention for participation in RA based on lowest 50% bidders qualifying for RA, the number of sellers qualifying for RA would be increased to get at least products of one more OEM (directly participated or through its reseller) if available. Further, if bid(s) of any seller(s) eligible for MSE preference is / are coming within price band of 15% of Non MSE L-1 or if bid of any seller(s) eligible for Make in India preference is / are coming within price band of 20% of non MII L-1, then such MSE / Make in India seller shall also be allowed to participate in the RA process.

### **COD (Chemical Oxygen Demand) Analyzer (Closed Reflux) ( 1 pieces )**

**(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)**

#### **तकनीकी विशिष्टियाँ /Technical Specifications**

[\\* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

| विवरण/Specification | विशिष्टि का नाम /Specification Name | बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)                                                                            |
|---------------------|-------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------|
| Digester            | facility for holding minimum vials  | 12                                                                                                                                         |
| COD Reagents        | Reagents                            | Composition of digestion solution (with mercuric sulphate) and sulphuric acid reagent to be provided for low, medium and high range of COD |
| COD Vials           | Final Volume of Sample IN ML        | 5                                                                                                                                          |
|                     | COD vial Range, mg/l                | Medium Range: 0 to 1500 mg/L                                                                                                               |
| COD Meter           | COD Range, mg/l                     | Medium Range: 0 to 1500 mg/L                                                                                                               |
|                     | Concentrations with accuracy        | 2 to 3 Percent FS                                                                                                                          |
|                     | Wavelength(LED/Filter setup)        | 600.0 (nanometer)                                                                                                                          |

**Additional Specification Parameters - COD (Chemical Oxygen Demand) Analyzer (Closed Reflux) ( 1 pieces )**

| Specification Parameter Name | Bid Requirement (Allowed Values)                                   |
|------------------------------|--------------------------------------------------------------------|
| Additional accessories       | Number of vials to be provided: 12 Number Reagent must be provided |

\* Bidders offering must also comply with the additional specification parameters mentioned above.

**परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity**

| क्र.सं./S.No. | परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address                                                               | मात्रा /Quantity | डिलीवरी के दिन/Delivery Days |
|---------------|---------------------------------------------------------|---------------------------------------------------------------------------|------------------|------------------------------|
| 1             | Charola Samirkumar Kanjibhai                            | 360003,Government Polytechnic, Nr. Aji Dam, Bhavnagar Road, Rajkot-360003 | 1                | 30                           |

**क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions**

**1. Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery

time shall be  $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$ , subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

## 2. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file](#).

## 3. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

These Terms and Conditions govern your participation as a bidder in any bid initiated on the Government e-Marketplace (GeM) platform by any department, organization, or Public Sector Undertaking (PSU) of the Government of Gujarat. By submitting a bid, you agree to be bound by these Terms, in addition to all applicable GeM policies, guidelines, statutory provisions, and specifically, the Gujarat State Procurement Policy 2024.

### 1. Earnest Money Deposit (EMD)

All bidders are mandatory to submit an Earnest Money Deposit (EMD) as per below detail.

(As per the Gujarat State Procurement Policy 2024).

The EMD must be in the form of a Demand Draft (DD).

#### Demand Draft Details:

**The DD must be drawn in**

|                                 |                                                           |
|---------------------------------|-----------------------------------------------------------|
| <b>DD Amount<br/>(In Rs.)</b>   | <b>2400 /-</b>                                            |
| <b>DD Amount<br/>(In words)</b> | <b>Two Thousand Four Hundred only</b>                     |
| <b>In favor of</b>              | <b>Principal, Government Polytechnic, Rajkot</b>          |
| <b>Bank Detail</b>              | <b>State Bank of India<br/>Bhaktinagar branch, Rajkot</b> |

The DD should clearly state the BID reference number and the bidder's name.

#### Uploading a Scanned Copy:

Bidders must upload a scanned copy of the DD to the GeM Portal. The scanned copy should be clear and legible, ensuring all details of the DD are visible.

The uploaded document will be considered as proof of EMD submission.

**Physical Submission of DD:**

In addition to uploading the scanned copy, bidders are required to submit the original physical copy of the DD. The physical DD must reach the designated office/address mentioned in the BID document no later than three (3) days from the bid end date.

Late Submission: Failure to submit the physical DD within the stipulated timeframe will result in disqualification from the bid process. The uploaded scanned copy will not be considered a valid substitute for the physical DD.

**Rejection:**

The EMD will be rejected if the details on the physical DD do not match the details on the uploaded scanned copy, or if the DD is not drawn in the specified format or on the designated bank. Any discrepancies may lead to disqualification.

**Refund:**

EMDs of unsuccessful bidders will be returned as per the terms and conditions specified in the bid document.

**Eligibility criteria for Exemption in EMD:**

- a) Micro & small-scale enterprises which participate directly in tendering process for the product which they are manufacturing / service which they are providing and have Udyam registration for items / service under procurement and having Registration with CSPO or National Small Industries Corporation
- b) Startups which participate directly in tendering process for the product which they are manufacturing / service which they are providing and recognised by DPIIT under the Start-up India Program and has obtained Udyam registration & CSPO/NSIC registration as MSE
- c) Organization which has registration certificate for the manufacturing product of the tender, from Gujarat Khadi Gramodyog Board or Khadi and Village Industries Commission (K.V.I.C) or Commissioner of Cottage Industries.
- d) Board/Corporations/PSUs of the Central/State Government for their own manufactured items
- e) State Government recognized organizations like (i) organizations for blinds, dumb and deaf, disabled, mentally disabled persons; (ii) women's self-help group recognized by Gujarat Livelihood Promotion Company; which participate directly in tendering process for the product which they are manufacturing / service which /they are providing
- f) Sellers who have got their credentials verified through the process of Vendor Assessment by Vendor Assessment Agencies through GeM for the Primary Product/Primary Service for which Bid/RA floated on GeM.

- g) In keeping with GeM guidelines, OEM and service providers rendering services directly or by its own and having annual turnover of INR 500 Crore or more.
- h) In keeping with GeM guidelines, Sellers/Service Providers holding BIS license for the Primary Product Category whose credentials are validated through BIS database.

## 2. Turnover as per GeM Bid:

- Bidders must meet the minimum average annual turnover requirement as precisely specified below;

| <b>Turnover (Annual Average of last 03 year)</b> |                                     |
|--------------------------------------------------|-------------------------------------|
| <b>Rs.</b>                                       | <b>In words</b>                     |
| <b>160000 /-</b>                                 | <b>One Lakh Sixty Thousand only</b> |

- This turnover will typically be calculated based on the last three completed financial years preceding the bid opening date, ending on 31st March of the previous financial year.
- Bidders must submit valid documentary evidence, such as audited financial statements or a certificate from a Chartered Accountant/Cost Accountant indicating turnover details for the relevant period, to substantiate their declared turnover.
- In cases where the bidder's constitution/incorporation date is less than three years, the average turnover for the completed financial years since constitution shall be considered.
- Exemption for MSEs and Startups (as per GeM and GSPP 2024): Micro and Small Enterprises (MSEs) as per latest MSME rules, and Startups recognized by DIPIT under the Startup India Program with Udyam registration, shall be exempted from the "Bidder Turnover" criteria, subject to meeting quality and technical specifications. Supporting documents proving eligibility for such exemptions must be uploaded with the bid.

## 3. Experience as per GeM Bid:

- Bidders must possess the requisite experience as explicitly outlined in the specific GeM bid document.
- This may include a requirement for successfully completing a certain number of similar projects or supply orders within a specified number of years.
- The bid document will detail the type, value, and period of experience required.
- Bidders shall provide copies of relevant contracts/work orders, completion certificates, and any other supporting documents as evidence of their experience.



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- Exemption for MSEs and Startups (as per GeM and GSPP 2024): MSEs and Startups shall be exempted from the "Experience Criteria," provided they meet the quality and technical specifications of the bid. Supporting documents proving eligibility for such exemptions must be uploaded with the bid.

#### **4. Registered Office Within State (Based on Gujarat Government GeM Policy 2024)**

- Local Preference: As per the Gujarat State Procurement Policy 2024, preference may be given to bidders whose registered office or a functional full-time branch office is located within the State of Gujarat (specifically, Ahmedabad/Gandhinagar or as specified in the bid document).
- Bidders claiming this preference must provide valid documentary evidence (e.g., GST registration with Gujarat address, Udyam Registration, or a certificate from a competent authority) to prove their registered office/branch office location in Gujarat.
- The specific weightage or preference extended to bidders from Gujarat will be explicitly mentioned in the bid document and will be in accordance with the prevailing Gujarat State Procurement Policy 2024.

#### **5. Important GeM Bid Conditions**

For your bid to be technically qualified, please adhere to the following mandatory conditions:

- **Mandatory Submission of Signed and Stamped Annexure-1:** It is imperative that bidders upload a duly signed and stamped copy of "Annexure-1: Technical Specification," which is attached within the "Additional Terms and Conditions" (ATC) section of this bid. Failure to submit this required document will lead to disqualification during the technical bid evaluation.
- **Compliance with Annexure-1 for Supply:** The items supplied must conform precisely to the specifications detailed in Annexure-1. Please note that while adherence to Annexure-1 is paramount for supply, there may be instances where certain technical parameters displayed in the final contract order differ slightly.

#### **अस्वीकरण/Disclaimer**

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid &

resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

**All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.**

**For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.**

**The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:**

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

**All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-**

**compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.**

**This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.**

**However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.**

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

**---धन्यवाद/Thank You---**